

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

**Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.**

**COMPLAINANT’S RESPONSE IN OPPOSITION TO
RESPONDENT’S FIRST MOTION TO COMPEL ADEQUATE RESPONSES TO
REQUESTS FOR ADMISSION AND INTERROGATORIES**

Complainant Visual Comfort & Co. (“VCC” or “Complainant”), by counsel, hereby responds in opposition, pursuant to 46 C.F.R. 502.150, to Respondent COSCO Shipping Lines Co. Ltd. (“COSCO” or “Respondent”) Motion to Compel Adequate Responses to Requests for Admission and Interrogatories, and in support thereof states the following:

INTRODUCTION

During the case management conference on May 16, 2024 the parties discussed that production of documents has been delayed on both sides. In the same conference, the Presiding Officer ordered motions to compel to be filed by May 31, 2024. Since the conference on May 16, Counsel for VCC has conferred with Counsel for COSCO to narrow and clarify its discovery requests in an effort to avoid this motions practice. Accordingly, counsel for both parties clarified their discovery requests and production expectations without issue. Following the meet-and-confer, VCC served Supplemental Responses to Respondent’s First Set of Discovery Requests on

May 31, 2024. (Complainant's Supplement Responses to Respondent's First Set of Discovery Requests) (**Attachment A**).¹

On May 30, COSCO served its Motion to Compel Adequate Responses to Requests for Admission and Interrogatories pursuant to the Commission-imposed deadline, despite the receipt of Supplemental Responses from VCC.² Therefore, VCC opposes an Order compelling further responses as moot. VCC has fully and adequately responded to all of Respondent's requests, and amended or withdrawn disputed objections. Because VCC has responded to COSCO's requests, and COSCO promised to withdraw any discovery responses that no longer need the Presiding Officer's attention, an Order compelling further responses is not warranted.

SPECIFIC REQUESTS

A. REQUESTS FOR ADMISSION (RFAs)

1. **RFA8** – See Attachment A for VCC's supplemented response to this Request. Respondent's argument to compel response to this Request is moot because VCC has admitted the Request.

B. INTERROGATORIES (INTs)

COSCO's "General Deficiency 1" is moot because VCC has withdrawn the prematurity objection at issue. *See* Attachment A. Please see below for VCC's specific responses in opposition to each interrogatory mentioned by COSCO in its motion.

1. **INT3, 9, 10, 11, 12, 15, 16, 17, 18, 19, 20, 21, 22, 23, 25, 26, 27, 28, and 19** – VCC's supplemented response to these Interrogatories are attached as Attachment A.

¹ Submitted per 46 C.F.R. 502.150(a)(3).

² As mentioned in Respondent's Motion, VCC served responses to COSCO's notice of deficiencies to confirm what was agreed in the parties' meet-and-confer.

Respondent's request for an order compelling a response to this Interrogatory is moot because VCC has answered the Interrogatory and promised to supplement its answer as additional information becomes available.

2. **INT8** – VCC's supplemented response to this Interrogatory is also attached as Attachment A. Respondent's request for an order compelling a response to this Interrogatory is moot because VCC has answered the Interrogatory by incorporating its previous answers and identifying publicly available information on which it intends to rely. Additionally, VCC promised to supplement its answer as additional information becomes available. *In & Out Welders, Inc. v. H & E Equip. Servs., Inc.*, 2018 WL 2147502, at *10 (M.D. La. May 9, 2018) (holding that publicly available information is not required in response to discovery requests).

ARGUMENT

As described above, and as supported by Attachment A, COSCO's motion to compel is moot because the Request for Admission and Interrogatory deficiencies described in its motion have been addressed and answered.

The Commission's Rules provide that a motion to compel is warranted where a party is "failing to... respond to discovery requests," or where requests "have not been answered or for which evasive or incomplete responses have been given." 46 C.F.R. 502.150(a)(2)(i)-(ii).

COSCO's motion must be denied because VCC has adequately answered each deficiency claimed. *See Seafair Usa LLC, Complainant v. Sterling Container Line Ltd. and Atlantic Forwarding Ltd., Respondents.*, 2023 WL 4329867, at *1 (F.M.C. 2023) (denying a motion to compel as moot because the non-movant served supplemental responses to the discovery requests at issue); *see also Bureau of Enforcement v. Ocean Network Express Pte. Ltd., et al.*, 2022 WL 1485900, at *6 (F.M.C. 2022). Additionally, VCC has affirmatively promised to supplement its

productions because discovery is ongoing and the collection of relevant information continues, especially concerning information held by relevant third-parties. Accordingly, an Order compelling further responses is not warranted.

CONCLUSION AND REQUESTED RELIEF

Based on the foregoing, Complainant respectfully requests that the Presiding Office issue an Order DENYING Complainant's Motion to Compel Discovery.

Dated: June 6, 2024

Respectfully submitted,

/s/ Jennifer M. Oliver

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CERTIFICATE OF SERVICE

I certify that on the 6th day of June, 2024, a true and correct copy of the foregoing was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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